

ASCII MASTER FLOW – PANEL 1/12: Article 244 starting point and the autonomy-development rationale

ROOT PROBLEM

ordinary territorial administration may reproduce dispossession and weak bargaining power.

ARTICLE 244(1)

Fifth Schedule -> Scheduled Areas and Scheduled Tribes outside the Sixth Schedule map.

ARTICLE 244(2)

Sixth Schedule -> tribal areas in Assam, Meghalaya, Tripura and Mizoram.

ARTICLE 244A

Parliament may create an autonomous State within Assam with legislature/CoM.

TERMS

Scheduled Tribe = Article 342 community status

| Scheduled Area = presidential territorial declaration

| tribal area = Sixth Schedule territorial unit.

CORE IDEA differentiated institutions pursue substantive equality within one Constitution.

MUST REMEMBER: Keep Article 244, Article 244A, the Fifth Schedule and the Sixth Schedule separate before adding the statutory PESA and FRA layers.

ASCII MASTER FLOW – PANEL 2/12: Fifth Schedule: declaration, Governor, TAC and regulation chain

SCHEDULED AREA

President declares, enlarges, diminishes or alters after the constitutional consultation route.

EXECUTIVE CHAIN

State executive applies -> Governor reports annually/when required to President
-> Union may issue directions on administration.

TRIBES ADVISORY COUNCIL

up to 20 members; as nearly as may be three-fourths ST legislators in the State.
advises on ST welfare/advancement matters referred by Governor.

GOVERNOR'S REGULATION

peace and good government -> restrict/prohibit tribal land transfer
-> regulate allotment -> regulate money-lending
-> may amend State/Parliament law for the area.

CHECK

regulation requires Presidential assent; personal-discretion claims need exact authority.

ASCII MASTER FLOW – PANEL 3/12: Sixth Schedule territory, council composition and four-State scope

SCOPE

Assam | Meghalaya | Tripura | Mizoram only.

AUTONOMOUS DISTRICT

Governor organises territory; multiple tribes may form autonomous regions.

ORDINARY DISTRICT COUNCIL MODEL

not more than 30 members -> up to four nominated by Governor

-> remainder elected by adult suffrage -> normally five-year elected term.

REGIONAL COUNCIL

created for an autonomous region; powers follow the Schedule and applicable rules.

ASSAM VARIATION

special paragraphs/statutes/accord implementation may modify composition and powers.

LIMIT ADC != State, municipality, ordinary Panchayat or Article 244A autonomous State.

ASCII MASTER FLOW – PANEL 4/12: Sixth Schedule legislative, executive, judicial and fiscal powers

LEGISLATIVE

land other than reserved forest | non-reserved forest | shifting cultivation
| village administration | inheritance | marriage/divorce | social customs.
Governor assent is required for council laws.

EXECUTIVE

primary schools, dispensaries, markets, roads and specified local services.

JUDICIAL

village courts/council courts for specified tribal-party disputes
subject to constitutional/statutory supervision and jurisdiction rules.

FISCAL

District/Regional Funds | land revenue | listed taxes/fees | mineral-royalty share.

CHECKS

Governor territorial and suspension/dissolution powers
| Parliament/State-law application controls | audit and judicial review.

LIMIT autonomy is substantial but enumerated and supervised, not sovereignty.

ASCII MASTER FLOW – PANEL 5/12: Fifth and Sixth Schedules: complete close-option comparison

DIMENSION	FIFTH SCHEDULE	SIXTH SCHEDULE
States	multiple notified States	Assam/Meghalaya/Tripura/Mizoram
territory	Scheduled Area	autonomous district/region
core body	Governor + TAC	elected District/Regional Council
law mechanism	Governor regulation	council law + Governor assent
judicial power	no Schedule-created ADC courts	council/village courts in listed field
finance	State/Union channels	own funds + listed taxes/royalty share
local democracy	PESA in covered areas	council system; Part IX ordinarily
excluded		

COMMON PURPOSE

land/custom protection + self-government + development administration.

TRAP

TAC is advisory, not an ADC | Sixth Schedule does not cover every North-Eastern State.

ASCII MASTER FLOW – PANEL 6/12: PESA, FRA, land and resource rights with judicial boundaries

PESA, 1996

Part IX extension to Fifth Schedule areas -> customary village/Gram Sabha

-> plans/resources/markets/land safeguards through exact statutory verbs.

FRA, 2006

individual/community forest rights + community forest-resource governance

through its own claim and recognition procedure.

LAND / MINING CHAIN

territorial law -> land-transfer rule -> PESA role -> FRA rights

-> forest/environment clearance -> rehabilitation -> judicial review.

Samatha (1997)

protected Scheduled-Area land under the applicable Andhra Pradesh regime;

not a detached nationwide mining ban.

Orissa Mining Corporation (2013)

Gram Sabhas determined specified FRA religious/community-right claims at Niyamgiri;

not an unlimited veto over every project.

CLOSE DISTINCTION: PESA section 4 uses distinct verbs: approval, consultation, mandatory prior

recommendation, ownership and control. None creates one universal veto.

ASCII MASTER FLOW – PANEL 7/12: Scheduled Tribe safeguards beyond territorial autonomy

RIGHTS AND REPRESENTATION

Article 46 -> education/economic interests and protection from exploitation.

Articles 330/332 -> ST political reservation in Lok Sabha/State Assemblies.

Article 335 -> service claims consistent with administrative efficiency.

FINANCE AND OVERSIGHT

Article 275(1) -> specified grants

| Article 338A -> National Commission for Scheduled Tribes

| Article 339 -> commission and Union welfare-scheme directions.

NCST ROLE

monitor safeguards -> inquire into complaints -> advise planning

-> report to President -> recommendations and follow-up.

BOUNDARY

NCST does not replace Governor/TAC, Gram Sabha, ADC, courts or elected governments.

ASCII MASTER FLOW – PANEL 8/12: Article 371, Panchayats and autonomous-council boundaries

DO NOT COLLAPSE FOUR SYSTEMS

Article 371A/371G -> State-specific Part XXI consent shields.

Fifth Schedule -> Governor/TAC administration for Scheduled Areas.

Sixth Schedule -> autonomous district/regional councils in four States.

ordinary Part IX -> Panchayats outside exclusions; PESA modifies Fifth Schedule route.

ACCOUNTABILITY TENSIONS

autonomy vs elite capture | custom vs individual rights

| development vs land/resource security | Governor oversight vs elected legitimacy.

CURRENT CONTROL

Ladakh or other demands for Sixth Schedule/Statehood/Article 371 safeguards

remain proposals until the Constitution or law is validly changed.

REFORM

clear jurisdiction + audited funds + accessible laws + women/community voice

-> transparent Governor action + timely rights recognition.

ASCII MASTER FLOW – PANEL 9/12: Prelims firewalls and Mains synthesis

PRELIMS FIREWALL

President declares Scheduled Areas | Governor makes Fifth Schedule regulations
| President assents | TAC advisory | ADC laws need Governor assent
| reserved forest excluded from listed ADC forest power
| Article 244A applies only within Assam.

PYQ ROUTES

Fifth/Sixth identification | council composition/powers
| PESA verbs | FRA relationship | Article 275/339 | land/mining case limits.

MAINS SPINE

define differentiated autonomy -> identify territory -> map institution/power
-> rights/development purpose -> accountability risk -> named case with limit
-> reform through voice, legality, capacity and audit.

SYNTHESIS

autonomy earns legitimacy when it protects land and custom while remaining inclusive,
reviewable, fiscally accountable and capable of delivering development.

ASCII MASTER FLOW – PANEL 10/12: Article 275(1), Article 339 and the Union accountability chain

ARTICLE 275(1)

grants-in-aid support Scheduled-Area administration and ST welfare schemes.

ARTICLE 339(1)

President appoints a commission on Scheduled Areas and ST welfare.

ARTICLE 339(2)

Union may direct States on schemes essential to ST welfare.

ACCOUNTABILITY ROUTE

local evidence -> Governor report -> Union scrutiny -> funded corrective action.

ASCII MASTER FLOW – PANEL 11/12: PESA exact-verb decision ladder and FRA interface

PESA SECTION 4

Gram Sabha approves plans; identifies beneficiaries; certifies fund use; is consulted before land acquisition; gives mandatory recommendation for specified minor-mineral decisions; owns minor forest produce; controls markets and money-lending; prevents and restores alienated land.

FRA, 2006

Gram Sabha initiates rights claims and protects community forest resources.

LIMIT

consultation, recommendation and approval are not interchangeable and do not create one universal veto.

ASCII MASTER FLOW – PANEL 12/12: Current controls, reform route and extension test

DATED CONTROL – 28 AUGUST 2026

Fifth Schedule areas remain notified in 10 States. Jharkhand PESA Rules, 2025 are listed by MoPR; no separate Odisha rules instrument is listed. Ladakh remains outside the Sixth Schedule.

REFORM ROUTE

publish outcome-based Governor reports -> reasoned TAC disposal -> align State laws with PESA -> strengthen ADC audit and own-source revenue -> converge FRA records and legal aid.

EXTENSION TEST

tribal geography + customary institutions + democratic demand + viable powers + federal fit; never treat Sixth Schedule as an automatic template.

LEGAL/SOURCE LIMIT: The 4 August 2026 MHA parliamentary answer identifies ten Sixth-Schedule ADCs in four States; Ladakh remains outside the Sixth Schedule.